

Here, plaintiffs move to seal an account agreement for non-party BW Industries, Inc. and nine emails between Bitwise in-house legal counsel and its former officers and employees included as evidence in opposition to defendant's motion for summary judgment.

Exhibits 87, 92, 93, 94, 105, 108, 110, 117, and 119 are emails produced by the bankruptcy trustee pursuant to Federal Rule of Evidence 502(d) which provides that the transmittal of the data taken into the bankruptcy trustee's custody to a requesting party shall not be deemed a waiver of any claim of privilege. (Fogarty Decl., ¶ 7.) The emails between in-house counsel for Bitwise and its officers are communications protected by attorney-client privilege and attorney work product doctrine that would otherwise be protected from discovery to support sealing the documents. (*Id.*, ¶ 8; *McNair v. Nat'l Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 33.) There would be significant prejudice to non-parties Bitwise and its officers in making these protected communications public. (*Id.*, ¶ 12.) The court is satisfied that the prejudice in making these communications public overrides the public interest in the documents.

Plaintiffs' motion to seal exhibits 85, 87, 92, 93, 94, 105, 108, 110, 117, and 119 in support of plaintiff's opposition to the motion for summary judgment is granted.

Tentative Ruling

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(46)

Tentative Ruling

Re: ***Sarah Sanchez v. City of Fresno***
Superior Court Case No. 23CECG04266

Hearing Date: September 3, 2026 (Dept. 501)

Motion: by Defendant for Summary Judgment

Tentative Ruling:

To deny the motion for summary judgment, and alternatively, the motion for summary adjudication.

Explanation:

Defendant City of Fresno ("Defendant" or "the City") moves for summary judgment as to the Third Amended Complaint ("TAC") of Plaintiff Sarah Sanchez ("Plaintiff"), and alternatively for summary adjudication.

Evidence

Defendant's request for judicial notice is granted.

Defendant's objection to the Declaration of Ernest Burnwell is overruled. Defendant claims the declaration is inadmissible as it is an opinion on how the case should be decided. However, Mr. Burnwell's declaration appears to offer more than an opinion on the outcome of the case. Mr. Burnwell provides his extensive resume establishing him as an expert in his field, and attaches his report following his review of the records provided to him. His report includes opinions on various aspects of the case based on his knowledge and experience, not limited to the case outcome; for example, he offers an observation and opinion on use of a "breaker bar" (Burnwell Decl., Exh. A, p. 14) and commanding or handling canines. (See Burnwell Decl., generally.)

Applicable Summary Judgment Laws

A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) In determining a motion for summary judgment, the court views the evidence "in the light most favorable to the plaintiff," liberally construing plaintiff's evidence and strictly scrutinizing the defendant's evidence. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.) The court does not weigh evidence or inferences (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856), nevertheless, the court shall consider all inferences reasonably deducible from the evidence unless it is controverted by other inferences or evidence. (Code Civ. Proc., § 437c, subd. (c).) Doubts as to whether there is a triable issue of fact are resolved in favor of the opposing party. (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Summary adjudication is the proper mechanism for challenging a particular, "cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty." (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242.) However, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); see also *Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 97 [piecemeal adjudication prohibited].)

A summary judgment motion must show that the "material facts" are undisputed. (Code Civ. Proc., § 437c, subd. (b)(1).) The pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74 [pleadings determine the scope of relevant issues on a summary judgment motion].)

The ultimate burden of persuasion rests on the defendant as the moving party. The initial burden of production is on the defendant to show, by a preponderance of the evidence, that it is more likely than not that a given element cannot be established or that a given defense can be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The defendant must support the motion for summary adjudication with evidence, including, but not limited to, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice may be taken. (Code Civ. Proc., § 437c, subd. (b).) Defendants can meet this burden by producing affirmative evidence negating an essential element of a plaintiff's claim. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 324.) Defendants can also meet this burden by showing that a plaintiff does not have evidence and cannot reasonably obtain said evidence on an essential element of a plaintiff's claim. (*Aguilar, supra*, 25 Cal.4th at p. 855.)

If the defendant carries this initial burden of production, the burden of production shifts to the plaintiff to show that a triable issue of material fact exists. The plaintiff does this if she can show, by a preponderance of the evidence, that it is more likely than not that a given element can be established or that a given defense cannot be established. (*Aguilar, supra*, 25 Cal.4th at 852.)

The Action is Not Barred Pursuant to Yount v. City of Sacramento

Defendant submits that Plaintiff's action is barred pursuant to *Yount v. City of Sacramento* ("Yount") (2008) 43 Cal. 4th 885. Plaintiff pled nolo contendere to a misdemeanor violation of Penal Code section 148 subd. (a)(1) ("PC 148") for resisting a public or peace officer. (Undisputed Material Fact ["UMF"] No. 34.) Defendant argues that pursuant to *Yount*, a judgment in Plaintiff's favor would necessarily imply the invalidity of her conviction.

However, the court in *Yount* specified that to the extent a plaintiff's claim is made as to the excessive response to resistance and not to the use of force itself, a claim is not necessarily barred. (*Yount v. City of Sacramento* (2008) 43 Cal.4th 885, 898.) A criminal conviction of PC 148 does not itself establish a justification for the amount of force used, and a claim alleging the amount of force was not a reasonable response to Plaintiff's

criminal acts of resistance does not implicitly question the validity of conviction. (*Id.*, at pp. 898-899.)

[A] defendant might resist a lawful arrest, to which the arresting officers might respond with excessive force to subdue him. The subsequent use of excessive force would not negate the lawfulness of the initial arrest attempt, or negate the unlawfulness of the criminal defendant's attempt to resist it. Though occurring in one continuous chain of events, two isolated factual contexts would exist, the first giving rise to criminal liability on the part of the criminal defendant, and the second giving rise to civil liability on the part of the arresting officer. [Citation]

(*Yount, supra*, 43 Cal.4th at p. 899, citation omitted.)

The court in *Yount* even discusses a case of excessive force through use of a K-9, citing to *Smith v. City of Hemet* (9th Cir. 2005) 394 F.3d 689, which observed that “a defendant entering a plea of guilty or no contest in California ‘is free to admit having committed a specific act or acts of resistance, delay, or obstruction, to identify the particular acts of unlawfulness to which he is willing to plead, and to deny that he engaged in other ... acts.’” (*Yount, supra*, 43 Cal.4th at p. 901, citations omitted.) The mere possibility that Plaintiff's unlawful conduct occurred during the performance of their investigative duties and not solely while effecting an arrest by use of excessive force prevents the implication of the invalidity of Plaintiff's conviction. (*Ibid.*)

Here, as in *Yount*, Plaintiff's resistance caused the officers to respond with force of their own. (*Yount, supra*, 43 Cal.4th at p. 899.) But, also as in *Yount*, the degree of force used and whether it was excessive requires a separate analysis. The validity of Plaintiff's conviction is not in question; the facts to which Plaintiff pled nolo contendere to PC 148 are an isolated factual context to the set of facts giving rise to potential civil liability on the part of the officers using (potentially excessive) force. It is undisputed that Plaintiff resisted the officers during their initial encounter. (UMF Nos. 9, 16.) However, once the officers responded with force, the degree of force used is disputed. (UMF Nos. 23, 27-29.) The court finds the present action is not barred by Plaintiff's criminal conviction.

Whether the Force Used by Officers was Excessive is a Triable Issue of Fact

Assault and Battery

Defendant admits that “A city may be liable if an officer commits assault and battery. (See Gov't Code § 815.2.) In the context of making an arrest or overcoming resistance to it, police officers are not immune under Government Code section 820.2 when using unreasonable force in making an arrest or overcoming resistance to it. (*Conway v. County of Tuolumne* (2014) 231 Cal.App.4th 1005, 1015.)” (Mtn., 9:21-24.)

As it is undisputed that the officers and the City could potentially be liable, Defendant's argument then is that officers here are not liable as they did not use unreasonable force. However, Defendant has not met its burden to demonstrate that unreasonable force is an element that cannot be established, or that there is a complete defense. Defendant submits 35 material facts, of which Plaintiff disputes 12. Plaintiff

provides five additional facts, which Defendant disputes. The facts in dispute demonstrate triable issues as to the circumstances leading up to the officers' use of force and the excessive nature of the force used.

Intentional Infliction of Emotional Distress

This cause of action asks whether an actor's conduct is so outrageous as to exceed the bounds tolerated in a civilized community. The evidence provided demonstrates a conflict of whether use of a K-9 in the instant scenario was reasonable or excessive, and the parties' conflicting positions of the same evidence (i.e. bodycam footage) further demonstrates the possibility that reasonable minds could differ.

Negligence and Negligent Infliction of Emotional Distress

A finding of negligence¹ requires a breach of a duty causing damages. Defendant cites to *Hayes v. County of San Diego* (“Hayes”) (2013) 57 Cal.4th 622, which further relies on *Graham v. Connor* (1989) 490 U.S. 386. In determining whether an officer breached his duty of care, the “reasonableness” of force is judged from the perspective of a reasonable officer on the scene. (*Hayes*, at p. 632.) Defendant’s evidence does not demonstrate that no triable issue of fact exists or provides complete defense to any element of this cause of action. In fact, the evidence shows that whether the officers on the scene acted reasonably in the circumstances is a central issue to this case.

The court finds that Defendant has not met its burden to show there is no triable issue of fact for any of the causes of action. The motions for summary judgment and alternatively for summary adjudication are denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/01/26
(Judge's initials) (Date)

¹ Both parties recognize that Negligent Infliction of Emotional Distress is not a separate and independent tort, and instead relies on a *prima facie* negligence action.